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|   |                                                                                | <p>non-opposition. ROA 46. Defendant's motion is therefore granted.</p> <p>Benyard's class claims are dismissed without prejudice. The superior court action is stayed pending completion of the arbitration. The initial case management conference scheduled for April 17, 2025 is vacated. An ADR Review hearing is scheduled for <u>November 6, 2025 at 9:00 a.m.</u> in Department CX104. The parties are ordered to file a joint status conference report at least five court days before the hearing.</p> <p>Defendant Navien, Inc. to give notice.</p> <p><u>Initial Case Management Conference</u></p> <p>The court has reviewed the parties' joint status conference statement filed April 10, 2024 (ROA 48). In light of the court's concurrent ruling on defendant Navien, Inc.'s motion to compel arbitration, the initial case management conference scheduled for April 17, 2025 at 2:00 p.m. in Department CX104 is vacated.</p> <p>Clerk to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 3 | <p>Boone v. Sedgwick Claims Management Services, Inc.</p> <p>2022-01268269</p> | <p><u>Plaintiff's Motion for Approval of PAGA Settlement</u></p> <p>The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for approval of a \$45,000 PAGA settlement. The court has the following comment:</p> <ol style="list-style-type: none"> <li>1. In its November 22, 2024 order (ROA 176), the court stated that the notice should be revised to state the deadline for checks to be mailed. 11/22/24 Order (ROA 176) ¶ 2. The Third Amendment to the PAGA Settlement Agreement (Fourth Supp. Carney Decl. (ROA 182) Ex. 2) states in paragraph 4.4 that the settlement administrator will issue the Individual PAGA Payments "three weeks after the Proposed Notice is mailed," but it states in paragraph 4.4.1 that "the Individual PAGA Payments will be issued on the 50th day after the original notice mailing." The notice states (at p. 2) that the checks "will be mailed no later than fifty (50) days after the date this initial letter is mailed." If the parties intend that the settlement administrator will mail the checks no later than 50 days after the administrator mails the initial letter, paragraph 4.4 of the Third Amendment should be revised (and paragraph 4.4.1 should be revised to state "no later than fifty (50) days" rather than "on the 50th day"). If the parties intend that the settlement administrator will mail the checks three weeks after the administrator mails the initial letter, paragraph 4.4.1 of the Third Amendment and the notice letter should be revised.</li> </ol> <p>The hearing on plaintiff's motion for approval is continued to <u>August 21, 2025 at 2:00 p.m.</u> in Department CX104 to permit</p> |

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|   |                                                                                  | <p>the parties to address and respond to the above issues. See <i>also</i> Department CX104 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents. The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order).</p> <p>Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 4 | <p>Clark, et al. v. Windsail Capital Group, LLC, et al.</p> <p>2021-01191735</p> | <p><u>Defendants Windsail Credit Fund, L.P., Windsail Capital Fund, L.P., Windsail Capital Group, LLC, Windsail GP, LLC, Crate Modular, Inc., Michael Rand and Matthew T. O'Rourke's Motion to Seal</u></p> <p>Defendants Windsail Credit Fund, L.P., Windsail Capital Fund, L.P., Windsail Capital Group, LLC, Windsail GP, LLC, Crate Modular, Inc., Michael Rand and Matthew T. O'Rourke move to seal an exhibit lodged conditionally under seal in connection with plaintiff GrowthPoint Global Inc.'s motions to compel responses to a request for production and to special interrogatories. For the following reasons, defendants' unopposed motion is granted.</p> <p>The sealed document rules in California Rules of Court 2.550 and 2.551 do not apply to "discovery motions and records filed or lodged in connection with discovery motions or proceedings." Cal. R. Ct. 2.550(a)(3). The exhibit defendants seek to seal was lodged in connection with discovery motions, and defendants designated the document confidential pursuant to the parties' Partial Stipulation and Protective Order (filed 11/14/22, ROA 1073). This showing is sufficient to grant defendants' motion to seal.</p> <p>The following document is ordered sealed:</p> <ul style="list-style-type: none"> <li>Exhibit 18 to the Supplemental Vu Declaration (ROA 2360) in support of Plaintiff GrowthPoint Global Inc.'s Motions to Compel Responses from Crate Modular, Inc. to Request for Production of Documents No. 91 and to Second Set of Special Interrogatories and from Windsail Entities to Fourth Set of Special Interrogatories.</li> </ul> <p>Defendants to give notice.</p> |
| 5 | <p>Diaz, et al. v. Express Services, Inc., et al.</p> <p>2019-01049858</p>       | <p><u>Plaintiffs' Motion for Final Approval of Class Action and PAGA Settlement</u></p> <p>The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiffs' motion for</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |